

For the foregoing reasons, Defendant's demurrer is **SUSTAINED in its entirety WITH LEAVE TO AMEND.**

18. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
*HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION
FILED BY: CURIA GLOBAL, INC.
TENTATIVE RULING:

On the Court's own motion, the hearing on this matter is continued until April 27, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

20. 9:01 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT PETER DOCTER; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

21. 9:01 AM CASE NUMBER: C23-02461
CASE NAME: TRINITY LOVE VS. MICHAEL HILDNER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES
FILED BY: LLORENTE, MANUEL J
TENTATIVE RULING:

Defendant Manuel Llorente ("Defendant") filed his Motion to Compel Further Responses to Request for Production of Documents, Set Two on September 29, 2025 (the "Motion to Compel Further

Responses”). The Motion to Compel Further Responses was initially set for hearing on January 7, 2026. The motion is opposed.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the “Discovery Requests”) are the following:

1. Defendant’s Request for Production of Documents, Set Two to Defendant Del Rio on the Park HOA (the “RPD”). Defendant Del Rio on the Park Homeowner’s Association is referred to herein as the “HOA.”

Opposition papers were filed by the HOA on March 11, 2026. The Opposition papers were filed late. In the Court’s discretion, it has considered them.

Reply papers were filed March 16, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

After the filing of the motion, the HOA served amended responses to the RPD after further efforts to locate responsive documents. Declaration of Hal Chase Jr. filed March 11, 2026 (“Chase Decl.”), ¶13 and **Exhibit 2** thereto (the “Amended Responses”).

Because Amended Responses were served and all of the responses at issue were included in those amended responses (see RPD Nos. 1, 2, 5, 6, 7), the present motion is moot except as relates to the matter of sanctions. Those Amended Responses were served October 2, 2025 and any issue with those further responses would have to have been raised by a motion directed at the Amended Responses within the statutory timeframe. See Code Civ. Proc. § 2031.310(c) (“Unless notice of this motion is given within 45 days of the service of the verified response, **or any supplemental verified response**, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.”) (emphasis added).

Accordingly, the pending motion is DENIED as MOOT with respect to the request to compel further

responses.

Notwithstanding the motion being moot as to the issue of compelling further responses, the Court considers the issue of sanctions. A court may award sanctions even when the subject requested discovery was provided to the moving party after a motion to compel was filed. Rule 3.1348(a) of the California Rules of Court (“CRC”) (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed.”).

Sanctions

The HOA’s failure to make full and complete code compliant responses and to timely produce responsive documents—necessitating this motion to secure the later Amended Responses—constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

Among other things, the original responses were not code compliant and contained limitations and meritless objections despite a waiver of objections due to the initial failure to timely respond. Moreover, responsive documents were not timely produced or their inspection permitted. See Declaration of Jennifer Sommer filed September 29 2025, ¶2 *et seq.*

Even where the original responses appeared to acknowledge the existence of responsive material, the purported statements of compliance, as written, contained an outright refusal to comply based on the meritless contention that the responsive material was “equally available” to the propounding party:

Del Rio on the Park HOA objects to this request on the grounds that it is overly broad and burdensome on the grounds that it calls for information equally available to the propounding party.

Subject to and without waving the objection, Responding party responds as follows: Responding party is in possession CC &R’s relevant to the subject property and discovery responses previously served on all parties subject to this case, the contents of which are equally available to Propounding party and will not be reproduced.

See RPD No. 5, Separate Statement filed September 29, 2025, p. 4.

This response is not code compliant as written. Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, § 8:1469. A responding party is obligated to produce all responsive documents in the responding party’s possession, custody or control. Code Civ. Proc. § 2031.010(a); see also Code Civ. Proc. § 2031.220. Documents under a party’s “control” include those which a party has the legal right to obtain upon demand from third parties.

The Court finds that the foregoing conduct by the HOA constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and necessitating the brining of this motion to secure production of responsive documents, the Court finds that the HOA did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of sanctions unjust.

The HOA shall pay monetary sanctions to Defendant in the amount of **\$1,310.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’

fees, incurred by Defendant as a result of the foregoing conduct by the HOA. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses is DENIED IN PART and GRANTED IN PART.
2. The Monetary Sanctions shall be paid by the HOA to Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

Courtroom Clerk's session

22. 10:00 AM CASE NUMBER: C23-01464

CASE NAME: BLANCA SANTOS VS. ANDREA ACOSTA

JURY TRIAL 5-7 DAYS

FILED BY:

TENTATIVE RULING:

Parties to Appear.

**Law & Motion
Add On**

23. 9:00 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

Before the Court is Defendants Simona Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP's ("Hyden Zakheim") (collectively "Defendants") demurrer. The demurrer relates to Plaintiff Robert Rodriguez's ("Plaintiff" or "Mr. Rodriguez") First Amended Complaint for (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage;